

**October 31, 2025: Jurisdictional
Hearing 25JU04261
In The Matter of Al-mira Davis**

August 10, 2026

October 31, 2025 Jurisdictional Hearing 25JU04261

00:00:01,030 -> 00:00:01,850

AAD Yasmin Wadia: Good morning, Your Honor. We're

00:00:01,850 -> 00:00:02,670

AAD Yasmin Wadia: here in the matter while we are

00:00:02,670 -> 00:00:05,890

AAD Yasmin Wadia: Davis. Case number 25JU04261.

00:00:05,890 -> 00:00:07,750

AAD Yasmin Wadia: Today's day is October 31st,

00:00:07,750 -> 00:00:09,770

AAD Yasmin Wadia: 2025. This is the time to

00:00:09,770 -> 00:00:11,470

AAD Yasmin Wadia: accept your sexual trial as to

00:00:11,470 -> 00:00:13,480

AAD Yasmin Wadia: mother in this matter. Yasmin W

00:00:13,480 -> 00:00:14,880

AAD Yasmin Wadia: adia on behalf of the Attorney

00:00:14,880 -> 00:00:16,390

AAD Yasmin Wadia: General's Office, on behalf of

00:00:16,390 -> 00:00:17,800

AAD Yasmin Wadia: the Orton Department of Human

00:00:17,800 -> 00:00:19,340

AAD Yasmin Wadia: Services court worker Emily Mar

00:00:19,340 -> 00:00:20,840

AAD Yasmin Wadia: quand, permanency caseworker

00:00:20,840 -> 00:00:22,110

AAD Yasmin Wadia: David Mellon, as well as PS

00:00:22,110 -> 00:00:23,690

AAD Yasmin Wadia: worker Ashley Platton. On

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AAD Yasmin Wadia: worker Ashley Platton. On
00:00:23,690 -> 00:00:24,820

AAD Yasmin Wadia: behalf of the trial in this
00:00:24,820 -> 00:00:26,350

AAD Yasmin Wadia: matter, counsel Ryan Lotzky.
00:00:26,350 -> 00:00:28,240

AAD Yasmin Wadia: Mother Ashley Penn is not
00:00:28,240 -> 00:00:29,170

AAD Yasmin Wadia: present.
00:00:30,170 -> 00:00:31,850

AAD Yasmin Wadia: father Alquan Davis is present,
00:00:31,850 -> 00:00:33,420

AAD Yasmin Wadia: represented by counsel Ivana M
00:00:33,420 -> 00:00:35,090

AAD Yasmin Wadia: oles. On behalf of the CASA
00:00:35,090 -> 00:00:35,450

AAD Yasmin Wadia: program
00:00:35,450 -> 00:00:37,930

AAD Yasmin Wadia: this morning, CASA supervisor,
00:00:37,930 -> 00:00:40,400

Rini: Alton Murphy. Okay, let me make
00:00:40,400 -> 00:00:42,650

Rini: a couple little notes here.
00:00:47,130 -> 00:00:47,680

Rini: All right.
00:00:47,680 -> 00:00:50,480

AAD Yasmin Wadia: Thank you, Judge. At this time, I would request that
00:00:50,480 -> 00:00:52,410

AAD Yasmin Wadia: mother be found in default,
00:00:52,970 -> 00:00:56,240

AAD Yasmin Wadia: pursuant to ORS 419B 914. The
00:00:56,240 -> 00:00:58,390

AAD Yasmin Wadia: agency has filed an affidavit
00:00:58,390 -> 00:01:00,460

AAD Yasmin Wadia: of an absent parent search as
00:01:00,460 -> 00:01:00,970

AAD Yasmin Wadia: well
00:01:00,970 -> 00:01:02,380

AAD Yasmin Wadia: as the Oregon Department of
00:01:02,380 -> 00:01:03,480

AAD Yasmin Wadia: Justice has filed its
00:01:03,480 -> 00:01:05,190

AAD Yasmin Wadia: declaration of diligent efforts
00:01:05,190 -> 00:01:06,730

AAD Yasmin Wadia: in trying to serve
00:01:06,730 -> 00:01:09,520

AAD Yasmin Wadia: mother. Mother has, despite the
00:01:09,520 -> 00:01:12,040

AAD Yasmin Wadia: agency attempting contact with
00:01:12,040 -> 00:01:14,730

AAD Yasmin Wadia: mother, emailing with mother,
00:01:14,730 -> 00:01:14,890

AAD Yasmin Wadia: trying
00:01:14,890 -> 00:01:16,900

AAD Yasmin Wadia: trying to set up dates, times,
00:01:16,900 -> 00:01:19,090

AAD Yasmin Wadia: locations to serve Mother, she
00:01:19,090 -> 00:01:22,750

AAD Yasmin Wadia: has essentially evaded service.
00:01:23,870 -> 00:01:24,530

Rini: Well, she's got that little pesky
00:01:24,530 -> 00:01:25,570

Rini: warrant out.
00:01:25,870 -> 00:01:28,640

AAD Yasmin Wadia: Yes. And additionally, it can
00:01:28,640 -> 00:01:30,670

AAD Yasmin Wadia: be argued that Mother has
00:01:30,670 -> 00:01:33,170

AAD Yasmin Wadia: constructive notice of these
00:01:33,170 -> 00:01:33,590

AAD Yasmin Wadia: proceedings
00:01:33,590 -> 00:01:35,410

AAD Yasmin Wadia: that she has been attempting to
00:01:35,410 -> 00:01:37,450

AAD Yasmin Wadia: file in the dependency case. At
00:01:37,450 -> 00:01:39,510

AAD Yasmin Wadia: this point in time, Judge,
00:01:40,030 -> 00:01:41,100

AAD Yasmin Wadia: I would request that Mother be
00:01:41,100 -> 00:01:42,640

AAD Yasmin Wadia: found in default and that the
00:01:42,640 -> 00:01:44,410

AAD Yasmin Wadia: agency be able to proceed with
00:01:44,410 -> 00:01:44,610

AAD Yasmin Wadia: its
00:01:44,610 -> 00:01:46,230

AAD Yasmin Wadia: prima facie as to the
00:01:46,230 -> 00:01:48,310

AAD Yasmin Wadia: allegations as to mother,
00:01:48,310 -> 00:01:50,730

AAD Yasmin Wadia: father at our previous hearing
00:01:50,730 -> 00:01:52,730

AAD Yasmin Wadia: did enter admissions.
00:01:53,850 -> 00:01:57,730

Rini: Okay. I will note in my file, I
00:01:57,730 -> 00:02:01,250

Rini: have had an opportunity to
00:02:01,250 -> 00:02:02,730

Rini: review the
00:02:02,730 -> 00:02:06,720

Rini: declaration of diligent efforts
00:02:06,720 -> 00:02:09,410

Rini: and also the affidavit
00:02:09,410 -> 00:02:13,720

Rini: regarding efforts to serve mom,
00:02:13,720 -> 00:02:15,330

Rini: both of which have been filed.
00:02:15,330 -> 00:02:17,010

Rini: I will also take judicial
00:02:17,010 -> 00:02:19,090

Rini: notice of the fact that Judge
00:02:19,090 -> 00:02:19,510

Rini: Thompson
00:02:19,510 -> 00:02:20,910

Rini: has signed a warrant for mom
00:02:20,910 -> 00:02:22,660

Rini: and that is still outstanding.
00:02:22,660 -> 00:02:25,290

Rini: Mom has attempted to file
00:02:25,290 -> 00:02:26,440

Rini: documents
00:02:26,440 -> 00:02:31,090

Rini: which I ruled upon. Why are
00:02:31,090 -> 00:02:35,370

Rini: those not in the file? Can you
00:02:35,370 -> 00:02:37,780

Rini: ask him why those are not in
00:02:37,780 -> 00:02:38,990

Rini: the file?
00:02:38,990 -> 00:02:41,370

Rini: because I made a ruling on them
00:02:41,370 -> 00:02:41,710

Rini: .
00:02:43,750 -> 00:02:44,810

Rini: Let me double check.
00:02:44,910 -> 00:02:46,330

Rini: Oh, no, they're down on 1014.
00:02:47,470 -> 00:02:49,000

Rini: Mom is clearly using some AI,
00:02:49,000 -> 00:02:52,170

Rini: some chat, you know, whatever,
00:02:52,810 -> 00:02:55,930

Rini: but citing statutes that don't
00:02:55,930 -> 00:02:58,430

Rini: actually apply to juvenile
00:02:58,430 -> 00:02:59,270

Rini: proceedings.
00:02:59,270 -> 00:03:01,530

Rini: So it's computer generated.
00:03:03,070 -> 00:03:06,160

Rini: So she also is making some
00:03:06,160 -> 00:03:09,580

Rini: other efforts to do some fil
00:03:09,580 -> 00:03:12,970

Rini: ings, but I will find the state
00:03:12,970 -> 00:03:15,840

Rini: has made diligent efforts under
00:03:15,840 -> 00:03:19,810

Rini: 419B 914, and therefore will
00:03:19,810 -> 00:03:22,190

Rini: find mother in default.
00:03:22,490 -> 00:03:23,510

Rini: And she clearly knows of the
00:03:23,510 -> 00:03:25,100

Rini: proceedings as she keeps filing
00:03:25,100 -> 00:03:26,710

Rini: regarding the proceedings.
00:03:27,990 -> 00:03:30,390

Rini: So you may proceed.
00:03:30,390 -> 00:03:31,670

AAD Yasmin Wadia: Thank you, Your Honor. Your
00:03:31,670 -> 00:03:33,630

AAD Yasmin Wadia: Honor, at this time, the agency
00:03:33,630 -> 00:03:35,350

AAD Yasmin Wadia: would call Emily Marquand to
00:03:35,350 -> 00:03:37,360

AAD Yasmin Wadia: provide testimony regarding the
00:03:37,360 -> 00:03:39,390

AAD Yasmin Wadia: allegations to one another.
00:03:43,730 -> 00:03:43,730

Clerk: Under the penalty of perjury,
00:03:43,730 -> 00:03:43,730

Clerk: do you solemnly swear or affirm
00:03:43,730 -> 00:03:45,190

Clerk: that the testimony you were
00:03:45,190 -> 00:03:46,500

Clerk: about to give in this
00:03:46,500 -> 00:03:48,430

Clerk: proceeding is the truth or the
00:03:48,430 -> 00:03:50,450

Clerk: whole truth and nothing but the
00:03:50,450 -> 00:03:51,330

Clerk: truth?
00:03:51,410 -> 00:03:51,930

Marquand: Yes, I do.
00:03:52,170 -> 00:03:53,480

Clerk: Please state and spell your first and last name for
00:03:53,480 -> 00:03:55,350

Clerk: the record,
00:03:55,350 -> 00:03:57,670

Marquand: Emily Marquand, E-M-I-L-I-E-M-A-R-Q-U-A-N-D.
00:03:58,670 -> 00:04:00,430

Rini: Oh, you can be seated for your
00:04:00,430 -> 00:04:01,330

Rini: testimony.
00:04:03,670 -> 00:04:05,190

AAD Yasmin Wadia: Good morning, Ms. Marquand. How
00:04:05,190 -> 00:04:05,870

AAD Yasmin Wadia: are you employed?
00:04:06,110 -> 00:04:06,670

Marquand: I work for the Oregon
00:04:06,670 -> 00:04:07,970

Marquand: Department of Human Services,
00:04:07,970 -> 00:04:09,110

Marquand: Child Welfare in Washington
00:04:09,110 -> 00:04:09,650

Marquand: County.
00:04:10,050 -> 00:04:10,800

AAD Yasmin Wadia: And how long have you been so
00:04:10,800 -> 00:04:11,730

AAD Yasmin Wadia: employed, ma'am?
00:04:11,970 -> 00:04:12,980

Marquand: I've worked for the agency for
00:04:12,980 -> 00:04:14,070

Marquand: eight and a half years.
00:04:14,590 -> 00:04:16,010

AAD Yasmin Wadia: Ms. Marquand, are you familiar
00:04:16,010 -> 00:04:17,700

AAD Yasmin Wadia: with the agency's petition in
00:04:17,700 -> 00:04:19,510

AAD Yasmin Wadia: the matter of Elmira Davis?
00:04:19,810 -> 00:04:20,110

Marquand: Yes.
00:04:20,810 -> 00:04:22,020

AAD Yasmin Wadia: And as it relates to
00:04:22,020 -> 00:04:25,640

AAD Yasmin Wadia: allegations surrounding mother,
00:04:25,640 -> 00:04:27,390

AAD Yasmin Wadia: have you reviewed the petition
00:04:27,390 -> 00:04:28,390

AAD Yasmin Wadia: allegations?
00:04:28,670 -> 00:04:30,430

AAD Yasmin Wadia: Yes. What is the agency then
00:04:30,430 -> 00:04:32,050

AAD Yasmin Wadia: regarding allegation A? The
00:04:32,050 -> 00:04:34,350

AAD Yasmin Wadia: mother does not understand the
00:04:34,350 -> 00:04:35,770

AAD Yasmin Wadia: specific needs of this child
00:04:35,770 -> 00:04:37,580

AAD Yasmin Wadia: and lacks skills necessary to
00:04:37,580 -> 00:04:39,660

AAD Yasmin Wadia: safely parent.
00:04:39,660 -> 00:04:42,000

Marquand: At the time of the after hours call related to
00:04:42,000 -> 00:04:43,980

Marquand: this family, there was an
00:04:43,980 -> 00:04:46,050

Marquand: incident between child and
00:04:46,050 -> 00:04:47,940

Marquand: father. This resulted
00:04:47,940 -> 00:04:50,190

Marquand: ultimately in the child being
00:04:50,190 -> 00:04:52,080

Marquand: taken to the hospital for
00:04:52,080 -> 00:04:54,390

Marquand: reviews of any injuries. At
00:04:54,390 -> 00:04:56,390

Marquand: that point in time, hospital
00:04:56,390 -> 00:04:58,330

Marquand: staff had talked with the child
00:04:58,330 -> 00:04:58,640

Marquand: 00:04:58,670 -> 00:05:00,520

Marquand: and the child had made some
00:05:00,520 -> 00:05:02,790

Marquand: very concerning disclosures of
00:05:02,790 -> 00:05:04,020

Marquand: suicidal ideations.
00:05:05,470 -> 00:05:06,560

Marquand: When Almira was informed that D
00:05:06,560 -> 00:05:09,190

Marquand: HS was attempting to contact her
00:05:09,190 -> 00:05:11,140

Marquand: mother to release her to her
00:05:11,140 -> 00:05:11,470

Marquand: care,
00:05:11,470 -> 00:05:13,410

Marquand: she expressed concerns about
00:05:13,410 -> 00:05:15,390

Marquand: being in her mother's care.
00:05:17,630 -> 00:05:18,310

Marquand: After talking with the hospital
00:05:18,310 -> 00:05:20,310

Marquand: social worker, it was learned
00:05:20,310 -> 00:05:21,790

Marquand: that there were concerns around
00:05:21,790 -> 00:05:23,370

Marquand: the child's mental health and
00:05:23,370 -> 00:05:24,990

Marquand: self-harming, leading to the
00:05:24,990 -> 00:05:26,580

Marquand: hospital recommending that
00:05:26,580 -> 00:05:28,270

Marquand: the child actually admitted
00:05:28,270 -> 00:05:30,170

Marquand: that day for further evaluation
00:05:30,170 -> 00:05:34,430

Marquand: . The social worker did have the
00:05:34,430 -> 00:05:36,330

Marquand: conversation with the child and
00:05:36,330 -> 00:05:38,170

Marquand: completed the risk assessment
00:05:38,170 -> 00:05:39,760

Marquand: and was and the child was
00:05:39,760 -> 00:05:40,110

Marquand: flagged as
00:05:40,110 -> 00:05:41,740

Marquand: high risk for suicidal ideation
00:05:41,740 -> 00:05:42,870

Marquand: and that the child had
00:05:42,870 -> 00:05:44,330

Marquand: attempted to commit suicide a
00:05:44,330 -> 00:05:45,150

Marquand: few days prior
00:05:45,150 -> 00:05:46,700

Marquand: with a knife but refused to
00:05:46,700 -> 00:05:48,520

Marquand: have her wrist and arms checked
00:05:48,520 -> 00:05:50,430

Marquand: for injuries. The child noted
00:05:50,430 -> 00:05:50,830

Marquand: that
00:05:51,790 -> 00:05:53,550

Marquand: she wouldn't attempt suicide if
00:05:53,550 -> 00:05:55,090

Marquand: she went home with her dad but
00:05:55,090 -> 00:05:56,750

Marquand: would attempt suicide if she
00:05:56,750 -> 00:05:58,910

Marquand: went home with her mom. The
00:05:58,910 -> 00:06:01,260

Marquand: hospital social worker informed
00:06:01,260 -> 00:06:03,280

Marquand: the agency that because of
00:06:03,280 -> 00:06:03,550

Marquand: these
00:06:03,550 -> 00:06:05,920

Marquand: ideations that the child would
00:06:05,920 -> 00:06:08,060

Marquand: be held overnight and have a
00:06:08,060 -> 00:06:10,390

Marquand: full evaluation the morning of
00:06:10,390 -> 00:06:11,630

Marquand: September 7th.
00:06:15,870 -> 00:06:18,630

Marquand: the hospital social worker
00:06:18,630 -> 00:06:21,660

Marquand: later informed the agency that
00:06:21,660 -> 00:06:24,390

Marquand: the mother did talk with the
00:06:24,390 -> 00:06:24,750

Marquand: child
00:06:24,750 -> 00:06:27,260

Marquand: while at the hospital and this
00:06:27,260 -> 00:06:29,490

Marquand: conversation ultimately
00:06:29,490 -> 00:06:31,500

Marquand: resulted in the child or
00:06:31,500 -> 00:06:32,590

Marquand: ultimately
00:06:32,590 -> 00:06:33,850

Marquand: resulted in the mother
00:06:33,850 -> 00:06:35,570

Marquand: confronting the child on these
00:06:35,570 -> 00:06:37,370

Marquand: concerning behaviors which led
00:06:37,370 -> 00:06:38,110

Marquand: to the child
00:06:38,110 -> 00:06:40,130

Marquand: then recanting these behaviors
00:06:40,130 -> 00:06:42,100

Marquand: or these statements and saying
00:06:42,100 -> 00:06:44,130

Marquand: that everybody was lying about
00:06:44,130 -> 00:06:44,510

Marquand: what she
00:06:44,510 -> 00:06:46,050

Marquand: had said related to the self-
00:06:46,050 -> 00:06:47,650

Marquand: harming and that she had tried
00:06:47,650 -> 00:06:49,310

Marquand: to kill herself at the mom.
00:06:51,550 -> 00:06:51,760

Marquand: There is significant concern
00:06:51,760 -> 00:06:54,100

Marquand: that the mother did coach the
00:06:54,100 -> 00:06:55,950

Marquand: child to recant these
00:06:55,950 -> 00:06:57,680

Marquand: statements after the
00:06:57,680 -> 00:07:00,090

Marquand: conversation that the mother
00:07:00,090 -> 00:07:02,350

Marquand: had with the child via phone.
00:07:06,830 -> 00:07:10,140

Marquand: and there have been numerous
00:07:10,140 -> 00:07:13,180

Marquand: situations over the years
00:07:13,180 -> 00:07:16,350

Marquand: related to the mother and the
00:07:16,350 -> 00:07:16,830

Marquand: child's
00:07:16,830 -> 00:07:18,800

Marquand: relationship. There have been
00:07:18,800 -> 00:07:20,760

Marquand: numerous reports captured under
00:07:20,760 -> 00:07:23,910

Marquand: the mother's case and there
00:07:23,910 -> 00:07:24,110

Marquand: have
00:07:24,110 -> 00:07:26,550

Marquand: been a total of 32 calls to the
00:07:26,550 -> 00:07:29,010

Marquand: agency with 19 of those calls
00:07:29,010 -> 00:07:31,630

Marquand: being assigned for assessment.
00:07:32,190 -> 00:07:34,350

Marquand: These are related to strictly
00:07:34,350 -> 00:07:36,700

Marquand: just Ms. Penn's case. There is
00:07:36,700 -> 00:07:38,070

Marquand: another case open under father's
00:07:38,070 -> 00:07:38,190

Marquand: 00:07:38,190 -> 00:07:40,120

Marquand: name as father does have sole
00:07:40,120 -> 00:07:42,230

Marquand: custody of the child related to
00:07:42,230 -> 00:07:44,510

Marquand: the domestic relations case.
00:07:45,070 -> 00:07:46,140

Marquand: However, these calls of
00:07:46,140 -> 00:07:47,840

Marquand: concerns are concerns for
00:07:47,840 -> 00:07:49,710

Marquand: neglect, threat of harm,
00:07:49,710 -> 00:07:50,830

Marquand: exposure to violence,
00:07:50,830 -> 00:07:52,350

Marquand: and concerns for physical abuse
00:07:52,350 -> 00:07:53,820

Marquand: and substance use by the mother
00:07:53,820 -> 00:07:56,990

Marquand: . This child was in ODHS custody
00:07:56,990 -> 00:07:57,150

Marquand: from
00:07:58,030 -> 00:08:01,900

Marquand: January of 2020 to May of 2021.

00:08:01,900 -> 00:08:04,330

Marquand: Ultimately, this child and her

00:08:04,330 -> 00:08:06,570

Marquand: full sibling were returned to

00:08:06,570 -> 00:08:06,830

Marquand: their

00:08:06,830 -> 00:08:08,270

Marquand: father's care. Father had

00:08:08,270 -> 00:08:09,770

Marquand: engaged in all of the services

00:08:09,770 -> 00:08:11,210

Marquand: and had done what he needed to

00:08:11,210 -> 00:08:11,710

Marquand: do to get

00:08:11,710 -> 00:08:13,110

Marquand: his girls back. However,

00:08:13,110 -> 00:08:14,650

Marquand: through the life of that case,

00:08:14,650 -> 00:08:16,010

Marquand: the mother did not engage in

00:08:16,010 -> 00:08:16,750

Marquand: any services

00:08:16,750 -> 00:08:19,070

Marquand: and actually failed to do any

00:08:19,070 -> 00:08:21,850

Marquand: of the services. Those services

00:08:21,850 -> 00:08:24,210

Marquand: were ordered were parenting

00:08:24,210 -> 00:08:24,650

Marquand: classes,
00:08:24,650 -> 00:08:26,370

Marquand: stable housing, visitation, a
00:08:26,370 -> 00:08:28,260

Marquand: neuropsychological, maintaining
00:08:28,260 -> 00:08:29,710

Marquand: contact with the agency,
00:08:29,710 -> 00:08:30,490

Marquand: engaging in
00:08:30,490 -> 00:08:32,320

Marquand: DV counseling, sorry, victim
00:08:32,320 -> 00:08:34,230

Marquand: services or survivor services,
00:08:34,230 -> 00:08:36,150

Marquand: signing releases of information
00:08:36,150 -> 00:08:36,410

Marquand: 00:08:36,410 -> 00:08:38,040

Marquand: and engaging in the children's
00:08:38,040 -> 00:08:39,960

Marquand: services. Again, mother did not
00:08:39,960 -> 00:08:41,610

Marquand: engage in these. Ultimately,
00:08:41,610 -> 00:08:44,440

Marquand: the agency petitioned or motion
00:08:44,440 -> 00:08:47,270

Marquand: ed to dismiss the case, but that
00:08:47,270 -> 00:08:49,370

Marquand: was at the point in time
00:08:49,370 -> 00:08:50,640

Marquand: where father did have sole
00:08:50,640 -> 00:08:52,130

Marquand: custody of the children and he
00:08:52,130 -> 00:08:53,580

Marquand: was granted that in February of
00:08:53,580 -> 00:08:54,410

Marquand: 2021.
00:08:56,970 -> 00:08:56,970

Marquand: During this assessment, the
00:08:56,970 -> 00:08:59,510

Marquand: agency did have conversations
00:08:59,510 -> 00:09:01,530

Marquand: with mother about the child's
00:09:01,530 -> 00:09:03,980

Marquand: suicidal ideations. The mother
00:09:03,980 -> 00:09:06,040

Marquand: refused to pick this child up
00:09:06,040 -> 00:09:08,250

Marquand: from the hospital. The mother
00:09:08,250 -> 00:09:08,490

Marquand: was
00:09:08,490 -> 00:09:11,160

Marquand: also made aware of the concerns
00:09:11,160 -> 00:09:13,640

Marquand: that brought the child to the
00:09:13,640 -> 00:09:16,440

Marquand: hospital and refused to really
00:09:16,440 -> 00:09:16,730

Marquand: engage
00:09:16,730 -> 00:09:19,090

Marquand: with the agency and protect her
00:09:19,090 -> 00:09:21,620

Marquand: child. She has made very little
00:09:21,620 -> 00:09:24,570

Marquand: attempts to have any visitation
00:09:24,570 -> 00:09:25,820

Marquand: in terms of in-person visit
00:09:25,820 -> 00:09:27,130

Marquand: ation or engagement with the
00:09:27,130 -> 00:09:28,120

Marquand: agency that have been
00:09:28,120 -> 00:09:30,410

Marquand: meaningful. As
00:09:30,410 -> 00:09:33,380

Marquand: noted earlier, that mother has
00:09:33,380 -> 00:09:36,240

Marquand: engaged in emails to the agency
00:09:36,240 -> 00:09:38,970

Marquand: more demands than anything and
00:09:38,970 -> 00:09:39,130

Marquand: has
00:09:39,130 -> 00:09:40,480

Marquand: refused to meet with the agency
00:09:40,480 -> 00:09:41,770

Marquand: and understand and learn this
00:09:41,770 -> 00:09:42,750

Marquand: child's behaviors and
00:09:42,750 -> 00:09:43,450

Marquand: understand and
00:09:43,450 -> 00:09:45,610

Marquand: learn what the child and the
00:09:45,610 -> 00:09:47,690

Marquand: trauma that this child has
00:09:47,690 -> 00:09:49,450

Marquand: engaged in or has been
00:09:49,450 -> 00:09:50,090

Marquand: subjected to,
00:09:50,090 -> 00:09:53,190

Marquand: my apologies. The agency does
00:09:53,190 -> 00:09:56,050

Marquand: have concerns that the mother
00:09:56,050 -> 00:09:59,450

Marquand: has coached this child. There
00:09:59,450 -> 00:09:59,770

Marquand: has been
00:09:59,770 -> 00:10:02,150

Marquand: ongoing concerns over the years
00:10:02,150 -> 00:10:04,230

Marquand: related to that and that the
00:10:04,230 -> 00:10:06,330

Marquand: mother at this point in time
00:10:06,330 -> 00:10:06,490

Marquand: does
00:10:06,490 -> 00:10:08,290

Marquand: not have the skills necessary
00:10:08,290 -> 00:10:09,980

Marquand: and does not understand the
00:10:09,980 -> 00:10:11,770

Marquand: specific needs of this child
00:10:11,770 -> 00:10:13,700

Marquand: related to specifically mental
00:10:13,700 -> 00:10:15,470

Marquand: health and the ongoing kind of
00:10:15,470 -> 00:10:17,450

Marquand: tumultuous relationship between
00:10:17,450 -> 00:10:18,950

Marquand: the mother and father related
00:10:18,950 -> 00:10:20,800

Marquand: to custody. Ms. Markpond, what
00:10:20,800 -> 00:10:22,330

AAD Yasmin Wadia: additional information has the
00:10:22,330 -> 00:10:24,000

AAD Yasmin Wadia: agency learned regarding Alley
00:10:24,000 -> 00:10:25,720

AAD Yasmin Wadia: ation 2B which reads the mother
00:10:25,720 -> 00:10:27,370

AAD Yasmin Wadia: fails to recognize the safety
00:10:27,370 -> 00:10:28,160

AAD Yasmin Wadia: threats
00:10:28,160 -> 00:10:30,080

AAD Yasmin Wadia: presented by father, I
00:10:30,080 -> 00:10:32,670

AAD Yasmin Wadia: apologize for that type of, and
00:10:32,670 -> 00:10:34,670

AAD Yasmin Wadia: is unwilling or unable to
00:10:34,670 -> 00:10:35,040

AAD Yasmin Wadia: protect the
00:10:35,040 -> 00:10:37,030

AAD Yasmin Wadia: child from father's unsafe behaviors
00:10:37,030 -> 00:10:39,110

Marquand: um as noted the day
00:10:39,110 -> 00:10:42,130

Marquand: of the after hours situation
00:10:42,130 -> 00:10:42,490

Marquand: and all
00:10:42,490 -> 00:10:44,650

Marquand: call workers did have contact
00:10:44,650 -> 00:10:46,750

Marquand: with mother eventually i think
00:10:46,750 -> 00:10:48,410

Marquand: it was many hours later
00:10:48,410 -> 00:10:50,570

Marquand: and informed them of what had
00:10:50,570 -> 00:10:53,270

Marquand: been happening um and um which
00:10:53,270 -> 00:10:56,890

Marquand: ultimately led the child to the
00:10:56,890 -> 00:10:58,580

Marquand: hospital in the first place um
00:10:58,580 -> 00:11:00,140

Marquand: related to the altercation
00:11:00,140 -> 00:11:02,570

Marquand: between father and child um
00:11:04,010 -> 00:11:05,550

Marquand: Despite knowing that, the
00:11:05,550 -> 00:11:07,230

Marquand: mother refused to pick up this
00:11:07,230 -> 00:11:12,250

Marquand: child. In addition, since the
00:11:12,250 -> 00:11:13,530

Marquand: dismissal of
00:11:13,530 -> 00:11:15,210

Marquand: the prior dependency case in
00:11:15,210 -> 00:11:17,530

Marquand: 2021, there have been a total
00:11:17,530 -> 00:11:19,280

Marquand: of 20 calls to the hotline
00:11:19,280 -> 00:11:20,250

Marquand: related to
00:11:20,250 -> 00:11:23,390

Marquand: father's case in our system, 10
00:11:23,390 -> 00:11:26,040

Marquand: of which have been assigned.
00:11:26,040 -> 00:11:28,540

Marquand: And those cases have been
00:11:28,540 -> 00:11:29,850

Marquand: related to
00:11:29,850 -> 00:11:31,750

Marquand: to concerns of physical abuse
00:11:31,750 -> 00:11:33,740

Marquand: and maltreatment. The mother
00:11:33,740 -> 00:11:34,890

Marquand: has engaged in those
00:11:34,890 -> 00:11:35,730

Marquand: assessments.
00:11:35,730 -> 00:11:37,490

Marquand: The mother has, I will say
00:11:37,490 -> 00:11:39,730

Marquand: limitedly, has engaged in those
00:11:39,730 -> 00:11:41,730

Marquand: assessments. She has been
00:11:41,730 -> 00:11:43,360

Marquand: put on notice of the concerning
00:11:43,360 -> 00:11:44,680

Marquand: behaviors that have been
00:11:44,680 -> 00:11:46,450

Marquand: happening, especially around
00:11:46,450 -> 00:11:48,770

Marquand: that relationship between child
00:11:48,770 -> 00:11:50,960

Marquand: and father. Mother also has a
00:11:50,960 -> 00:11:53,130

Marquand: very tumultuous relationship
00:11:53,130 -> 00:11:55,890

Marquand: with father and I apologize
00:11:55,890 -> 00:11:58,420

Marquand: excuse me the agency has an
00:11:58,420 -> 00:12:00,630

Marquand: obligation to inform
00:12:00,630 -> 00:12:02,370

Marquand: legal and biological parents of
00:12:02,370 -> 00:12:03,720

Marquand: all of these assessments
00:12:03,720 -> 00:12:05,010

Marquand: happening and so again
00:12:05,010 -> 00:12:06,760

Marquand: despite knowing all of this is
00:12:06,760 -> 00:12:08,580

Marquand: despite the history the mother
00:12:08,580 -> 00:12:09,390

Marquand: has failed to
00:12:09,390 -> 00:12:11,440

Marquand: modify the domestic relations
00:12:11,440 -> 00:12:13,530

Marquand: order in which granted father's
00:12:13,530 -> 00:12:14,670

Marquand: old custody and I
00:12:14,670 -> 00:12:16,460

Marquand: believe mom was supervised
00:12:16,460 -> 00:12:17,770

Marquand: parenting time is my
00:12:17,770 -> 00:12:19,470

Marquand: understanding and she is
00:12:19,470 -> 00:12:20,350

Marquand: to be able to protect this
00:12:20,350 -> 00:12:21,980

AAD Yasmin Wadia: child. And finally, Ms. Marqu
00:12:21,980 -> 00:12:23,690

AAD Yasmin Wadia: and, what additional information
00:12:23,690 -> 00:12:24,150

AAD Yasmin Wadia: has the
00:12:24,150 -> 00:12:25,720

AAD Yasmin Wadia: agency learned regarding Alley
00:12:25,720 -> 00:12:27,190

AAD Yasmin Wadia: ation 2C, which reads, the
00:12:27,190 -> 00:12:28,790

AAD Yasmin Wadia: mother is involved in criminal
00:12:28,790 -> 00:12:29,470

AAD Yasmin Wadia: activities
00:12:29,470 -> 00:12:30,790

AAD Yasmin Wadia: which interfere with her
00:12:30,790 -> 00:12:32,300

AAD Yasmin Wadia: ability to safely parent the child.

00:12:32,300 -> 00:12:33,860

Marquand: Yeah, mother has at

00:12:33,860 -> 00:12:34,690

Marquand: least two open

00:12:34,690 -> 00:12:36,090

Marquand: cases. One is the pending

00:12:36,090 -> 00:12:37,740

Marquand: charges of unlawful possession

00:12:37,740 -> 00:12:39,380

Marquand: of methamphetamine and theft in

00:12:39,380 -> 00:12:39,670

Marquand: the

00:12:39,670 -> 00:12:41,260

Marquand: first degree from September of

00:12:41,260 -> 00:12:43,400

Marquand: 2024. Mother currently has an

00:12:43,400 -> 00:12:44,830

Marquand: active warrant out for her

00:12:44,830 -> 00:12:46,810

Marquand: arrest and this has been active

00:12:46,810 -> 00:12:49,620

Marquand: since June of 2025, June 23rd

00:12:49,620 -> 00:12:52,510

Marquand: of 2025. She also has the

00:12:52,510 -> 00:12:52,830

Marquand: pending

00:12:52,830 -> 00:12:54,140

Marquand: theft in the first degree

00:12:54,140 -> 00:12:56,410

Marquand: charge from May of 2024. Mother
00:12:56,410 -> 00:12:58,060

Marquand: failed to appear to her hearing
00:12:58,060 -> 00:12:59,050

Marquand: on June 23
00:12:59,050 -> 00:13:01,570

Marquand: of 2025 for the theft of the
00:13:01,570 -> 00:13:03,630

Marquand: first degree but there was no
00:13:03,630 -> 00:13:05,010

Marquand: warrant issued in my
00:13:05,010 -> 00:13:06,170

Marquand: understanding
00:13:06,170 -> 00:13:08,520

Marquand: for that case likely because
00:13:08,520 -> 00:13:10,860

Marquand: there was the warrant for the
00:13:10,860 -> 00:13:13,290

Marquand: possession of meth and theft
00:13:13,290 -> 00:13:15,670

Marquand: charged from September of 24.
00:13:15,670 -> 00:13:18,350

Marquand: These are still open cases. The
00:13:18,350 -> 00:13:21,990

Marquand: mother hasn't cleared her
00:13:21,990 -> 00:13:23,960

Marquand: warrant for those cases. There
00:13:23,960 -> 00:13:26,940

Marquand: are significant concerns around
00:13:26,940 -> 00:13:29,700

Marquand: the substance use, but at this
00:13:29,700 -> 00:13:32,300

Marquand: time, these are pending and
00:13:32,300 -> 00:13:35,000

Marquand: open cases, and the agency has
00:13:35,000 -> 00:13:37,860

Marquand: not had meaningful contact with
00:13:37,860 -> 00:13:40,520

Marquand: the mother to fully assess her
00:13:40,520 -> 00:13:42,250

Marquand: and get information about her
00:13:42,250 -> 00:13:43,050

Marquand: substance use.
00:13:43,050 -> 00:13:43,970

Marquand: but these are concerning
00:13:43,970 -> 00:13:44,530

Marquand: behaviors.
00:13:45,410 -> 00:13:46,690

AAD Yasmin Wadia: Does the agency have any reason
00:13:46,690 -> 00:13:47,940

AAD Yasmin Wadia: to believe that Amira is an
00:13:47,940 -> 00:13:48,570

AAD Yasmin Wadia: Indian child
00:13:48,570 -> 00:13:49,660

AAD Yasmin Wadia: for the purposes of the Indian
00:13:49,660 -> 00:13:50,820

AAD Yasmin Wadia: Child Welfare Act or the Oregon
00:13:50,820 -> 00:13:51,830

AAD Yasmin Wadia: Indian Child Welfare Act?
00:13:51,970 -> 00:13:53,180

Marquand: There is no reason to believe
00:13:53,180 -> 00:13:54,610

Marquand: that equal or equal or why.
00:13:55,530 -> 00:13:56,280

AAD Yasmin Wadia: Ms. Marquant, to best of your
00:13:56,280 -> 00:13:58,430

AAD Yasmin Wadia: knowledge, is mother an active
00:13:58,430 -> 00:13:59,610

AAD Yasmin Wadia: service member
00:13:59,610 -> 00:14:00,930

AAD Yasmin Wadia: subject to the Service Member
00:14:00,930 -> 00:14:01,870

AAD Yasmin Wadia: Civil Relief Act?
00:14:02,210 -> 00:14:02,510

AAD Yasmin Wadia: No.
00:14:03,010 -> 00:14:03,930

AAD Yasmin Wadia: To best of your knowledge, is
00:14:03,930 -> 00:14:05,370

AAD Yasmin Wadia: there any reason why mother's
00:14:05,370 -> 00:14:07,370

AAD Yasmin Wadia: appearance today is out of her,
00:14:07,750 -> 00:14:08,770

AAD Yasmin Wadia: non-appearance today, is out of
00:14:08,770 -> 00:14:09,490

AAD Yasmin Wadia: her control?
00:14:10,210 -> 00:14:10,450 No.
00:14:11,190 -> 00:14:11,970

AAD Yasmin Wadia: I have no further questions,
00:14:11,970 -> 00:14:12,490

AAD Yasmin Wadia: Judge.
00:14:13,050 -> 00:14:15,450

Rini: All right. Ms. Moles and Mr. L
00:14:15,450 -> 00:14:17,690

Rini: otzke, anything you wish to add
00:14:17,690 -> 00:14:20,310

Rini: regarding the default fact
00:14:20,310 -> 00:14:20,790

Rini: basis?
00:14:20,790 -> 00:14:23,410

Rini: All right. Based upon the
00:14:23,410 -> 00:14:26,070

Rini: testimony received and the
00:14:26,070 -> 00:14:31,360

Rini: court is...okay, let me back up
00:14:31,360 -> 00:14:32,850

Rini: a little bit. I've pulled up so
00:14:32,850 -> 00:14:34,090

Rini: many files right now.
00:14:43,050 -> 00:14:51,610

Rini: All right, I want to. I'll take
00:14:51,610 -> 00:14:56,620 judicial notice of the fact
00:14:56,620 -> 00:15:00,970

Rini: that she has a warrant out on
00:15:00,970 -> 00:15:11,050

Rini: 24 CR 49043. And.
00:15:13,050 -> 00:15:27,740 I think there was one other one
00:15:27,740 -> 00:15:34,830

Rini: . Okay. So as to mom and just f
00:15:34,830 -> 00:15:39,410

Rini: leshing out some of the diligent
00:15:39,410 -> 00:15:42,170

Rini: efforts finding. I am noting
00:15:42,170 -> 00:15:44,450

Rini: that not only do I have your
00:15:44,450 -> 00:15:47,070

Rini: affidavit and your filings as
00:15:47,070 -> 00:15:47,550

Rini: to your
00:15:47,550 -> 00:15:49,280

Rini: efforts, I will note also mom
00:15:49,280 -> 00:15:51,100

Rini: actively avoiding service and
00:15:51,100 -> 00:15:52,920

Rini: has an active warrant. Mother
00:15:52,920 -> 00:15:53,450

Rini: is clearly
00:15:53,450 -> 00:15:54,930

Rini: aware of the proceedings. She
00:15:54,930 -> 00:15:56,370

Rini: has been submitting motions,
00:15:56,370 -> 00:15:57,640

Rini: emailing the court staff,
00:15:57,640 -> 00:15:58,410

Rini: including the
00:15:58,410 -> 00:16:00,170

Rini: deputy trial court
00:16:00,170 -> 00:16:03,450

Rini: administrator. I will also note
00:16:03,450 -> 00:16:06,120

Rini: because for all files, files
00:16:06,120 -> 00:16:07,730

Rini: get linked in the
00:16:07,730 -> 00:16:11,510

Rini: system. I am also aware that,
00:16:11,510 -> 00:16:15,580

Rini: well, interesting to note, when
00:16:15,580 -> 00:16:18,690

Rini: I read, I think it was Barr
00:16:18,690 -> 00:16:19,490

Rini: ister
00:16:19,490 -> 00:16:20,780

Rini: Legal Services did one of your
00:16:20,780 -> 00:16:22,100

Rini: attempted affidavits, and he
00:16:22,100 -> 00:16:23,350

Rini: described the person who
00:16:23,350 -> 00:16:23,590

Rini: answered
00:16:23,590 -> 00:16:25,600

Rini: the door at the one place, who,
00:16:25,600 -> 00:16:27,090

Rini: by the way, matches the
00:16:27,090 -> 00:16:29,150

Rini: description of the daddy of her
00:16:29,150 -> 00:16:31,450

Rini: child, Feliciano, who has a
00:16:31,450 -> 00:16:33,660

Rini: warrant out and attorney and
00:16:33,660 -> 00:16:35,780

Rini: date, though, for, lo and
00:16:35,780 -> 00:16:36,650

Rini: behold,
00:16:36,810 -> 00:16:38,300

Rini: They're co-defendants for a
00:16:38,300 -> 00:16:40,360

Rini: retail theft case, and he's got
00:16:40,360 -> 00:16:42,630

Rini: a TSI right now to address that
00:16:42,630 -> 00:16:42,930

Rini: warrant,
00:16:43,390 -> 00:16:44,320

Rini: which is for contempt for
00:16:44,320 -> 00:16:46,290

Rini: having contact with Ms. Penn.
00:16:46,590 -> 00:16:48,490

Rini: And also noting that Ms. Penn
00:16:48,490 -> 00:16:50,530

Rini: has attempted to file habeas
00:16:50,530 -> 00:16:52,550

Rini: corpus motions to get him out
00:16:52,550 -> 00:16:53,730

Rini: of custody.
00:16:55,230 -> 00:16:57,860

Rini: Very complex web of stuff going
00:16:57,860 -> 00:16:59,330

Rini: on here.
00:17:00,170 -> 00:17:02,180

Rini: but she clearly knows and the
00:17:02,180 -> 00:17:03,950

Rini: fact that she is actively
00:17:03,950 -> 00:17:06,170

Rini: avoiding service does not stop
00:17:06,170 -> 00:17:06,330

Rini: the
00:17:06,330 -> 00:17:08,180

Rini: proceedings from going forward
00:17:08,180 -> 00:17:09,950

Rini: the agency has definitely made
00:17:09,950 -> 00:17:11,690

Rini: diligent efforts was the foster
00:17:11,690 -> 00:17:13,670

Rini: parent notified of today's
00:17:13,670 -> 00:17:15,920

Rini: hearing yes okay i'll note that
00:17:15,920 -> 00:17:18,170

Rini: but no foster parent appeared
00:17:26,080 -> 00:17:27,840

Rini: I will also note that in the
00:17:27,840 -> 00:17:29,950

Rini: dismissal of Feliciano's case
00:17:29,950 -> 00:17:32,360

Rini: in Multnomah County, Judge Troy
00:17:32,360 -> 00:17:34,330

Rini: clearly was not happy, wrote
00:17:34,330 -> 00:17:36,230

Rini: multiple paragraphs about his
00:17:36,230 -> 00:17:38,190

Rini: concerns about the lethality of
00:17:38,190 -> 00:17:39,800

Rini: domestic violence in that
00:17:39,800 -> 00:17:40,770

Rini: household.
00:17:40,770 -> 00:17:42,380

Rini: That was not part of this case
00:17:42,380 -> 00:17:44,210

Rini: with mom and this father. It's
00:17:44,210 -> 00:17:45,290

Rini: part of the jurisdiction.
00:17:46,030 -> 00:17:48,200

Rini: But this is a mother who is not
00:17:48,200 -> 00:17:51,190

Rini: unfamiliar with the dependency
00:17:51,190 -> 00:17:52,290

Rini: system.
00:17:53,830 -> 00:17:55,190

Rini: I have no reason to believe the
00:17:55,190 -> 00:17:56,320

Rini: Indian Child Welfare Act
00:17:56,320 -> 00:17:57,530

Rini: federal or state applied.
00:17:57,630 -> 00:17:58,390

Rini: Is anyone else?
00:17:58,630 -> 00:17:59,560

Rini: I did not see anything in the
00:17:59,560 -> 00:18:00,250

Rini: paperwork.
00:18:00,710 -> 00:18:02,490

Rini: Child is under the age of 18.
00:18:02,630 -> 00:18:03,630

Rini: Venue is proper.
00:18:04,600 -> 00:18:05,330

Rini: This course has jurisdiction
00:18:05,330 -> 00:18:07,160

Rini: under the Uniform Child Custody

00:18:07,160 -> 00:18:09,270

Rini: Jurisdiction Enforcement Act.

00:18:10,130 -> 00:18:12,010

Rini: I will find that the state has

00:18:12,010 -> 00:18:13,770

Rini: proven for mom.

00:18:14,630 -> 00:18:17,670

Rini: That was allegations A, B, and

00:18:17,670 -> 00:18:18,290

Rini: C.

00:18:23,830 -> 00:18:28,530

Rini: Let's see. Dad made his

00:18:28,530 -> 00:18:38,470

Rini: admissions back on October 14.

00:18:38,470 -> 00:18:49,230

Rini: Based upon that, child is found

00:18:49,230 -> 00:18:50,440

Rini: within the jurisdiction of the

00:18:50,440 -> 00:18:50,830

Rini: court.

00:18:51,830 -> 00:18:53,230

Rini: All right. Are the parties

00:18:53,230 -> 00:18:54,030

Rini: prepared to proceed to

00:18:54,030 -> 00:18:55,890

Rini: disposition? Yes, Your Honor.

00:18:55,890 -> 00:18:58,050

Rini: All right. I have been handed

00:18:58,050 -> 00:19:00,580

Rini: what will be marked as State's
00:19:00,580 -> 00:19:03,290

Rini: Exhibit 1, consisting of the
00:19:03,290 -> 00:19:05,920

Rini: October 30th letter to the
00:19:05,920 -> 00:19:08,190

Rini: court and a proposed action
00:19:08,190 -> 00:19:11,080

Rini: agreement for each parent. What
00:19:11,080 -> 00:19:13,450

Rini: would you like to tell me?
00:19:13,690 -> 00:19:14,990

AAD Yasmin Wadia: At this point in time, Judge,
00:19:14,990 -> 00:19:16,240

AAD Yasmin Wadia: the agency does respectfully
00:19:16,240 -> 00:19:17,390

AAD Yasmin Wadia: request the court order the
00:19:17,390 -> 00:19:17,810

AAD Yasmin Wadia: services
00:19:17,810 -> 00:19:19,970

AAD Yasmin Wadia: as outlined on the service
00:19:19,970 -> 00:19:22,020

AAD Yasmin Wadia: checklist as to mother and
00:19:22,020 -> 00:19:22,930

AAD Yasmin Wadia: father.
00:19:23,190 -> 00:19:25,340

AAD Yasmin Wadia: I believe Mr. Davis previously
00:19:25,340 -> 00:19:27,480

AAD Yasmin Wadia: indicated a stipulation to the
00:19:27,480 -> 00:19:29,750

AAD Yasmin Wadia: psychological evaluation.
00:19:31,150 -> 00:19:31,850

AAD Yasmin Wadia: At this point in time, if Ms.
00:19:31,850 -> 00:19:34,110

AAD Yasmin Wadia: Marquand is still under oath, I
00:19:34,110 -> 00:19:34,860

AAD Yasmin Wadia: would ask her to provide
00:19:34,860 -> 00:19:35,970

AAD Yasmin Wadia: some updates and testimony.
00:19:36,310 -> 00:19:36,910

AAD Yasmin Wadia: Ms. Marquand?
00:19:36,910 -> 00:19:41,260

Marquand: Your Honor, the agency has
00:19:41,260 -> 00:19:46,110

Marquand: attempted to have contact with
00:19:46,110 -> 00:19:49,670

Marquand: mother. Again, most of these
00:19:49,670 -> 00:19:52,430

Marquand: contacts is more of demands by
00:19:52,430 -> 00:19:55,080

Marquand: mother and she stated that she
00:19:55,080 -> 00:19:57,250

Marquand: will only meet with the
00:19:57,250 -> 00:20:00,250

Marquand: agency once these demands are
00:20:00,250 -> 00:20:03,390

Marquand: kind of fulfilled. The child
00:20:03,390 -> 00:20:05,430

Marquand: has been at the relative
00:20:05,430 -> 00:20:06,530

Marquand: resource parent
00:20:07,330 -> 00:20:09,490

Marquand: since the onset of this case.
00:20:09,490 -> 00:20:12,180

Marquand: The child is doing well. The
00:20:12,180 -> 00:20:15,820

Marquand: child has stated that she does
00:20:15,820 -> 00:20:16,050

Marquand: want
00:20:16,050 -> 00:20:18,210

Marquand: contact with dad and that she,
00:20:18,210 -> 00:20:20,260

Marquand: you know, on the onset of this
00:20:20,260 -> 00:20:22,210

Marquand: case didn't want to go home
00:20:22,210 -> 00:20:22,360

Marquand: back
00:20:22,360 -> 00:20:23,380

Marquand: to dad. I think that
00:20:23,380 -> 00:20:24,850

Marquand: relationship with dad is a much
00:20:24,850 -> 00:20:25,950

Marquand: stronger bond than the
00:20:25,950 -> 00:20:26,930

Marquand: relationship with
605 00:20:26,930 -> 00:20:28,790

Marquand: mother that this child has but
00:20:28,790 -> 00:20:30,580

Marquand: ultimately she has also said
00:20:30,580 -> 00:20:32,450

Marquand: that she will go live with her
00:20:32,450 -> 00:20:32,840

Marquand: mother
00:20:32,840 -> 00:20:34,180

Marquand: but wants to do family
00:20:34,180 -> 00:20:36,230

Marquand: counseling first before that.
00:20:36,230 -> 00:20:38,110

Marquand: Obviously mom has not engaged
00:20:38,110 -> 00:20:38,690

Marquand: with the
00:20:38,690 -> 00:20:40,180

Marquand: agency so that may take some
00:20:40,180 -> 00:20:41,600

Marquand: time in order to kind of get
00:20:41,600 -> 00:20:43,330

Marquand: set up but the child is willing
00:20:43,330 -> 00:20:43,410

Marquand: and
00:20:43,410 -> 00:20:44,990

Marquand: wanting to engage in that
00:20:44,990 -> 00:20:47,030

Marquand: service. My understanding is
00:20:47,030 -> 00:20:49,940

Marquand: with both parents and while the
00:20:49,940 -> 00:20:51,170

Marquand: agency didn't
00:20:51,170 -> 00:20:54,500

Marquand: check that box on the checklist
00:20:54,500 -> 00:20:57,940

Marquand: of kind of therapeutic family
00:20:57,940 -> 00:21:00,210

Marquand: therapy the agency is looking
00:21:00,210 -> 00:21:01,890

Marquand: at that as through the route of
00:21:01,890 -> 00:21:03,580

Marquand: the child services child is is
00:21:03,580 -> 00:21:05,240

Marquand: wanting that type of service
00:21:05,240 -> 00:21:05,570

Marquand: and that
00:21:05,570 -> 00:21:06,900

Marquand: will be happening through the
00:21:06,900 -> 00:21:08,250

Marquand: counseling services that the
00:21:08,250 -> 00:21:12,130

Marquand: child is engaged in um father
00:21:12,130 -> 00:21:13,410

Marquand: at the time
00:21:13,410 -> 00:21:14,930

Marquand: of the last hearing was still
00:21:14,930 -> 00:21:16,560

Marquand: in custody he's been since been
00:21:16,560 -> 00:21:19,570

Marquand: released yes as noted um and i
00:21:19,570 -> 00:21:20,130

Marquand: believe
00:21:20,130 -> 00:21:21,690

Marquand: that the no contact order with
00:21:21,690 -> 00:21:23,360

Marquand: child is still in place. It was
00:21:23,360 -> 00:21:25,830

Marquand: not modified. The agency is
00:21:25,830 -> 00:21:26,130

Marquand: working
00:21:26,130 -> 00:21:28,290

Marquand: with the father now that he's
00:21:28,290 -> 00:21:30,100

Marquand: out and child to get some of
00:21:30,100 -> 00:21:32,010 the things at the father's
00:21:32,010 -> 00:21:32,930 house for the
00:21:32,930 -> 00:21:34,450 child that she has wanted. This
00:21:34,450 -> 00:21:35,690 has been kind of an ongoing
00:21:35,690 -> 00:21:37,000 need for the child, but given
00:21:37,000 -> 00:21:37,730 father was
00:21:37,730 -> 00:21:38,980 incarcerated, there was kind of
00:21:38,980 -> 00:21:40,130

Marquand: some barriers around that.
00:21:40,130 -> 00:21:43,430

Marquand: Father has been extremely
00:21:43,430 -> 00:21:45,080

Marquand: cooperative,
00:21:45,080 -> 00:21:46,110

Marquand: and I want to just note that
00:21:46,110 -> 00:21:47,250

Marquand: since father is here, he was
00:21:47,250 -> 00:21:48,500

Marquand: really cooperative in the last
00:21:48,500 -> 00:21:49,250

Marquand: case too. He
00:21:49,250 -> 00:21:52,010

Marquand: did what he needed to do to get
00:21:52,010 -> 00:21:54,810

Marquand: his children back and you know
00:21:54,810 -> 00:21:56,570

Marquand: as noted in testimony mother
00:21:56,570 -> 00:21:56,850

Marquand: didn't
00:21:57,410 -> 00:21:58,830

Marquand: and so a lot of that case in
00:21:58,830 -> 00:22:01,190

Marquand: the prior dependency case was
00:22:01,190 -> 00:22:03,730

Marquand: for kind of fighting the system
00:22:03,730 -> 00:22:03,970

Marquand: and
00:22:05,010 -> 00:22:05,630

Marquand: but father did engage in
00:22:05,630 -> 00:22:07,690

Marquand: services father's willing to
00:22:07,690 -> 00:22:09,890

Marquand: engage in services he's been in
00:22:09,890 -> 00:22:10,610

Marquand: communication
00:22:10,610 -> 00:22:13,010

Marquand: with mr milner is the perman
00:22:13,010 -> 00:22:15,730

Marquand: ency worker and i think that you
00:22:15,730 -> 00:22:18,290

Marquand: know with that no contact order
00:22:18,290 -> 00:22:19,790

Marquand: there is that barrier, but once
00:22:19,790 -> 00:22:21,290

Marquand: that's lifted, if and when that
00:22:21,290 -> 00:22:22,670

Marquand: 's lifted, the agency will
00:22:22,670 -> 00:22:24,270

Marquand: work diligently to kind of
00:22:24,270 -> 00:22:26,040

Marquand: start those visits and start
00:22:26,040 -> 00:22:27,950

Marquand: that in-home planning process
00:22:27,950 -> 00:22:28,570

Marquand: between
00:22:28,570 -> 00:22:30,040

Marquand: father and child. I have no
00:22:30,040 -> 00:22:32,170

Marquand: reason to believe that ICWA or
00:22:32,170 -> 00:22:34,650

Marquand: ICWA apply. Grandparents were
00:22:34,650 -> 00:22:36,130

Marquand: also notified, or that at least
00:22:36,130 -> 00:22:37,440

Marquand: the grandparents that we are
00:22:37,440 -> 00:22:39,010

Marquand: aware of were notified as well,
00:22:39,310 -> 00:22:40,490

Marquand: including the resource parent.
00:22:40,490 -> 00:22:44,590

Rini: All right, thank you. Ms. Molz?
00:22:44,590 -> 00:22:46,290

Marquand: Thank you, Your Honor.
00:22:46,290 -> 00:22:49,390

Marquand: I'll just say dad is continuing
00:22:49,390 -> 00:22:50,640

Marquand: to be cooperative as he was in
00:22:50,640 -> 00:22:51,430

Marquand: the last case.
00:22:51,570 -> 00:22:54,330

Marquand: He has already done parenting
00:22:54,330 -> 00:22:56,930

Marquand: classes as set up by DHS.
00:22:58,030 -> 00:22:58,710

Marquand: He also really wants to have
00:22:58,710 -> 00:23:00,580

Marquand: contact with his daughter to
00:23:00,580 -> 00:23:01,450

Marquand: that end.
00:23:01,910 -> 00:23:02,710

Marquand: I've been working with his
00:23:02,710 -> 00:23:03,870

Marquand: criminal attorney.
00:23:05,210 -> 00:23:06,180

Marquand: We filed the competing orders
00:23:06,180 -> 00:23:07,990

Marquand: paperwork, and that was denied
00:23:07,990 -> 00:23:08,830

Marquand: by Judge Guptill.
00:23:08,990 -> 00:23:10,560

Rini: Right, because I think you have
00:23:10,560 -> 00:23:12,040

Rini: to go through the old school
00:23:12,040 -> 00:23:12,550

Rini: process
00:23:12,550 -> 00:23:13,990

Rini: of requesting just the criminal
00:23:13,990 -> 00:23:15,110

Rini: court modification.
00:23:16,290 -> 00:23:17,790

Marquand: All right, so we'll continue
00:23:17,790 -> 00:23:19,930

AAD Yasmin Wadia: working on that. Maybe a third
00:23:19,930 -> 00:23:22,920

AAD Yasmin Wadia: try will be successful, finally
00:23:22,920 -> 00:23:25,090

AAD Yasmin Wadia: . I think that there's still a
00:23:25,090 -> 00:23:26,990

AAD Yasmin Wadia: lot of interested parties in
00:23:26,990 -> 00:23:28,730

AAD Yasmin Wadia: this case. The district
00:23:28,730 -> 00:23:30,630

Marquand: attorney may still have some
00:23:30,630 -> 00:23:32,670

Marquand: concerns about that contact,
00:23:32,670 -> 00:23:34,410

Marquand: but if we can have it per DHS
00:23:34,410 -> 00:23:36,700

Marquand: and then supervising, hopefully
00:23:36,700 -> 00:23:38,490

Marquand: that can alleviate some of
00:23:38,490 -> 00:23:39,930

Marquand: those concerns.
00:23:39,930 -> 00:23:41,520

Marquand: And dad is happy to cooperate
00:23:41,520 -> 00:23:43,680

Marquand: with the agency and getting the
00:23:43,680 -> 00:23:45,450

Marquand: child any of the things that
00:23:45,450 -> 00:23:47,390

Marquand: she's needing from the house,
00:23:47,390 -> 00:23:49,000

Marquand: anything that he's needing
00:23:49,000 -> 00:23:50,810

Marquand: moving forward, he's happy to
00:23:50,810 -> 00:23:51,210

Marquand: do.
00:23:51,770 -> 00:23:52,460

Marquand: As you know, he's already
00:23:52,460 -> 00:23:53,950

Marquand: resolved in this case, he didn
00:23:53,950 -> 00:23:55,250

Marquand: 't need to be here, but this
00:23:55,250 -> 00:23:56,730

Marquand: case is important to him, so it
00:23:56,730 -> 00:23:57,990

Marquand: was important for him to be
00:23:57,990 -> 00:23:59,240

Marquand: here and to keep abreast of
00:23:59,240 -> 00:24:00,590

Marquand: what's going on.
00:24:01,330 -> 00:24:02,770

Marquand: And I anticipate continuing in
00:24:02,770 -> 00:24:05,170

Marquand: that vein throughout the case.
00:24:06,050 -> 00:24:06,730

Marquand: Thank you.
00:24:06,730 -> 00:24:07,850

Rini: Mr. Latsky?
00:24:09,050 -> 00:24:10,200 Childhood is definitely in
00:24:10,200 -> 00:24:11,660 support of a modification of
00:24:11,660 -> 00:24:14,250 the release order for her
00:24:14,250 -> 00:24:14,670 father.
00:24:15,670 -> 00:24:17,270 And we'll support any devo-
tion
00:24:17,270 -> 00:24:18,610 for the same.
00:24:19,210 -> 00:24:20,710 Otherwise, she's doing well.
00:24:22,390 -> 00:24:23,530 Continue in therapy.
00:24:27,870 -> 00:24:28,510 Sorry.
00:24:39,050 -> 00:24:58,830

Marquand: I realize that I did not list
00:24:58,830 -> 00:24:59,710

Marquand: the services.
00:25:00,710 -> 00:25:02,190

Rini: Oh, I'm going through that now.
00:25:02,190 -> 00:25:02,790

Rini: Okay, sorry.
00:25:09,050 -> 00:25:13,250

Rini: I'm just filling up the check
00:25:13,250 -> 00:25:18,320

Rini: in the box this is a goal all
00:25:18,320 -> 00:25:25,110

Rini: right you said
00:25:25,110 -> 00:25:28,390

Rini: grandparents were made aware.
00:25:28,390 -> 00:25:34,770 All right, at this point in
00:25:34,770 -> 00:25:40,390

Rini: time, child is placed in the
00:25:40,390 -> 00:25:40,950

Rini: legal custody
00:25:40,950 -> 00:25:42,020

Rini: of the Oregon Department of
00:25:42,020 -> 00:25:43,250

Rini: Human Services and Substitute
00:25:43,250 -> 00:25:44,450

Rini: Care. Diligent efforts were
00:25:44,450 -> 00:25:44,870

Rini: made for
00:25:44,870 -> 00:25:46,240

Rini: relative placement as that has
00:25:46,240 -> 00:25:47,770

Rini: occurred. That placement is the
00:25:47,770 -> 00:25:49,440

Rini: least restrictive, most family-
00:25:49,440 -> 00:25:49,670

Rini: like
00:25:49,670 -> 00:25:51,560

Rini: setting. Reasonable efforts
00:25:51,560 -> 00:25:53,170

Rini: have been made to prevent or
00:25:53,170 -> 00:25:54,910

Rini: eliminate the need for removal.
00:25:54,910 -> 00:25:55,190

Rini: I'm
00:25:55,190 -> 00:25:57,690

Rini: noting the contents of Exhibit
00:25:57,690 -> 00:25:59,830

Rini: 1 and also noting mother
00:25:59,830 -> 00:26:02,200

Rini: actively evading DHS despite
00:26:02,200 -> 00:26:03,050

Rini: multiple
00:26:03,050 -> 00:26:04,820

Rini: attempts by the agency. Current
00:26:04,820 -> 00:26:06,420

Rini: case plan is reunification.
00:26:06,420 -> 00:26:08,050

Rini: Backup plan would be given her
00:26:08,050 -> 00:26:10,290

Rini: age or guardianship. Again,
00:26:10,290 -> 00:26:12,370

Rini: child was made war to the court
00:26:12,370 -> 00:26:14,690

Rini: , legal custody, and guardians
00:26:14,690 -> 00:26:15,370

Rini: hip to the
00:26:15,370 -> 00:26:17,170

Rini: agency for out-of-home care the
00:26:17,170 -> 00:26:18,870

Rini: agency shall notify court and
00:26:18,870 -> 00:26:19,930

Rini: attorneys when a
00:26:19,930 -> 00:26:21,290

Rini: child has been returned to a
00:26:21,290 -> 00:26:22,820

Rini: parent or a change in placement
00:26:22,820 -> 00:26:23,770

Rini: make appropriate
00:26:23,770 -> 00:26:25,260

Rini: referrals for the services
00:26:25,260 -> 00:26:26,960

Rini: consult with parents attorney
00:26:26,960 -> 00:26:29,610

Rini: regarding the evaluator
00:26:29,610 -> 00:26:31,770

Rini: maintain regular contact with
00:26:31,770 -> 00:26:33,740

Rini: the providers mom shall visit
00:26:33,740 -> 00:26:35,090

Rini: participate in
00:26:35,090 -> 00:26:37,250

Rini: parent education classes
00:26:37,250 -> 00:26:39,250

Rini: maintain contact with the
00:26:39,250 -> 00:26:40,930

Rini: agency clear and resolve
00:26:40,930 -> 00:26:42,230

Rini: warrants and pending criminal
00:26:42,230 -> 00:26:43,540

Rini: matters and comply with their
00:26:43,540 -> 00:26:48,150

Rini: criminal court cases. For dad,
00:26:48,150 -> 00:26:48,850

Rini: visit
00:26:48,850 -> 00:26:50,590

Rini: when you can, when we can get
00:26:50,590 -> 00:26:52,400

Rini: that all lined up. Do a psych
00:26:52,400 -> 00:26:54,150

Rini: eval, participate in those
00:26:54,150 -> 00:26:55,070

Rini: services.
00:26:55,630 -> 00:26:57,490

Rini: Dad stipulates to the service
00:26:57,490 -> 00:27:00,140

Rini: with a CAPI. Clear and resolve
00:27:00,140 -> 00:27:02,710

Rini: all warrants pending criminal
00:27:02,710 -> 00:27:03,130

Rini: matters,
00:27:03,310 -> 00:27:05,150

Rini: comply with terms of pretrial
00:27:05,150 -> 00:27:07,660

Rini: release, probation, parole, etc
00:27:07,660 -> 00:27:10,010

Rini: . Sign releases and participate
00:27:10,010 -> 00:27:10,450

Rini: in any
00:27:10,450 -> 00:27:11,960

Rini: of the child's therapies when
00:27:11,960 -> 00:27:13,760

Rini: allowed and if necessary. We
00:27:13,760 -> 00:27:16,610

Rini: will go ahead and set a review
00:27:16,610 -> 00:27:18,990

Rini: hearing for February 23rd at 9.
00:27:18,990 -> 00:27:24,680

Rini: And permanency, if we're still
00:27:24,680 -> 00:27:31,000

Rini: involved, will be June 29th at
00:27:31,000 -> 00:27:32,350

Rini: 9.
00:27:40,450 -> 00:27:41,650

Rini: Anything further we need to
00:27:41,650 -> 00:27:42,470

Rini: address today?
00:27:42,990 -> 00:27:43,510

AAD Yasmin Wadia: No, Your Honor.
00:27:44,290 -> 00:27:44,730

Rini: Okay.
00:27:45,150 -> 00:27:46,290

Rini: Dad, I'm glad you're out.
00:27:47,070 -> 00:27:47,800

Rini: We never want you to go
00:27:47,800 -> 00:27:48,750

Rini: sideways.
00:27:50,250 -> 00:27:50,840

Rini: Everything goes better if you
00:27:50,840 -> 00:27:52,650

Rini: remain out of custody.
00:27:53,250 -> 00:27:54,220

Rini: So your attorneys will keep
00:27:54,220 -> 00:27:55,860

Rini: working regarding the visit
00:27:55,860 -> 00:27:56,490

Rini: ation.
00:27:58,930 -> 00:27:59,440

Rini: And let's see if we can make
00:27:59,440 -> 00:28:01,470

Rini: that happen because I know she
00:28:01,470 -> 00:28:02,590

Rini: really does want to see you.
00:28:02,850 -> 00:28:03,850

Rini: And it can be done in a safe
00:28:03,850 -> 00:28:04,830

Rini: and secure way.
00:28:05,210 -> 00:28:05,910

Rini: We just need to get the
00:28:05,910 -> 00:28:07,380

Rini: criminal court to allow us to
00:28:07,380 -> 00:28:08,190

Rini: control it.
00:28:08,890 -> 00:28:09,490

Rini: All right.
00:28:09,530 -> 00:28:10,370

Rini: That would be the order.
00:28:10,450 -> 00:28:11,530

Rini: THANK YOU, EVERYONE.